

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 23, 2018

Honorable Michael P. Kenny
Judge of the Superior Court
County of Sacramento
720 Ninth Street
Sacramento, CA 95814

Re: Lawrence, Dawayne Jerrold
CDC No.: AR7749
Case No.: 11F04221
Date of Sentence: 10/18/2013

Dear Honorable Michael P. Kenny:

The purpose of this letter is to provide the court with authority to resentence Dawayne Jerrold Lawrence pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Lawrence was sentenced in 2013, and was convicted of section 245, subdivision (a)(1), Assault with a Deadly Weapon. The trial court sentenced inmate Lawrence on 10/18/2013. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Lawrence's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Lawrence's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable David DeAlba, Sacramento County Presiding Judge
Sacramento District Attorney
Public Defender

FELONY ABSTRACT OF JUDGMENT – DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SACRAMENTO				
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: DAWAYNE JERROLD LAWRENCE		DOB: 11-12-1975	11F04221	
AKA: DAWAYNE JERALD HARTSELL; aka EARS		CDCR # AR7749		
CII NO.: A09698027		☐ NOT PRESENT		
BOOKING NO.: CJIS XREF 2260767				
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT		☒ 2 nd AMENDED ABSTRACT		
DATE OF HEARING 10-18-13	DEPT. NO. 31	JUDGE MICHAEL P. KENNY		
CLERK S. LEE	REPORTER A. KUNS #10429	PROBATION NO. OR PROBATION OFFICER A-476,495 ☐ IMMEDIATE SENTENCING		
COUNSEL FOR PEOPLE A. ORTIZ, DDA		COUNSEL FOR DEFENDANT L. FRANCO, CAC ☒ APPTD.		

FILED / ENDORSED
NOV 14 2017
By C. Beebout, Deputy Clerk

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
____ (number of pages attached)

☐ Additional counts are listed on attachment
 _____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Refer to Item 5)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED		
						JURY	COURT	PLEA									YRS	MOS.	
7	PC	664/187(a)	Attempted Murder	2010	09 / 12 / 13			X	U									9	0
1	PC	192(a)	Voluntary Manslaughter	2011	09 / 12 / 13			X	U									11	0
2	PC	459**	Burglary, 2 nd Deg	2013	09 / 12 / 13			X	M	X								(2	0)
3	PC	211**	Robbert, 2 nd Deg	2011	09 / 12 / 13			X	M		X							1	0
4	VC	10851(a)	Vehicle Theft	2011	09 / 12 / 13			X			X								8
5	PC	451(d)	Arson	2011	09 / 12 / 13			X			X								8
6	PC	245(a)(1)	Assault with a Deadly Weapon	2010	09 / 12 / 13			X			X							1	0
8	PC	215(a)	Carjacking	2011	09 / 12 / 13			X			X							1	8

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	TOTAL	
7	12022(b)(1)	1 YR	186.22(b)(1)(C)	10 YRS	12022.7(a)	3 YRS	14	0
1	12022(b)(1)	1 YR	186.22(b)(1)(C)	10 YRS			11	0
2	12022(b)(1)	(1 YR)	186.22(b)(1)(A)	(3 YRS)	12022.7(a)	(3 YRS)	(7	0)
3	12022(b)(1)	4 MOS	186.22(b)(1)(C)	3 Y 4 MOS	12022.7(a)	1 YR	4	8
4	12022(b)(1)	4 MOS	186.22(b)(1)(A)	1 YR	12022.7(a)	1 YR	2	4
5	12022(b)(1)	4 MOS	186.22(b)(1)(B)	1 Y 8 MOS			2	0
6	186.22(b)(1)(C)	3 Y 4 MOS	12022.7(a)	1 YR			4	4
8	12022(b)(1)	4 MOS						4

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	TOTAL	
667.5(b)	1	667.5(b)	1	667.5(b)	1	3	0
667.5(b)	1	667.5(b)	1			2	0

4. ☐ Deft. sentenced per: ☐ to county jail per 1170(h)(1) or (2)
☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement
☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 0

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 68 8

Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: DEWAYNE JERROLD LAWRENCE			
11F04221	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$10,000 per PC 1202.4(b) forthwith per PC 2085.5; \$10,000 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$-0- ☐ Amount to be determined to ☒ victim **MICHAEL M.** ☐ Restitution Fund
 Case A: \$9,493.81 ☐ Amount to be determined to ☒ victim **JANET S.** ☐ Restitution Fund
 Case A: \$4,400.00 ☐ Amount to be determined to ☒ victim **MICHAEL S.** ☐ Restitution Fund
 Case A: \$ ☒ Amount to be determined to ☒ victim **LORRIE G. with a return date of no later than 45 days** ☐ Restitution Fund
☐ * Victim name(s), if known, and amount breakdown in item 13, below. ☐ * Victim names(s) in probation officer's report.

c. Fines:

Case A: \$10.00 per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Operations Assessment: \$320.00 per PC 1465.8. e. Conviction Assessment: \$240 per GC 70373. f. Other: \$ per (specify):

10. TESTING: ☒ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☐ other (specify):11. REGISTRATION REQUIREMENT: ☐ per (specify code section):12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify):

Deft to pay: \$287.78 Main Jail Booking Fee purs 29550.2 GC & \$59.23 Main Jail

Classification Fee purs 29550.2 GC

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c.
Defendant's race/national origin: White.

15. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
 b. ☐ at resentencing per decision on appeal.
 c. ☐ after revocation of probation.
 d. ☐ at resentencing per recall of commitment. (PC1170(d).)
 e. ☐ other (specify):

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	-0-	-0-	-0- ☐ 2933 ☐ 2933.1 ☐ 4019
B			☐ 2933 ☐ 2933.1 ☐ 4019
C			☐ 2933 ☐ 2933.1 ☐ 4019
D			☐ 2933 ☐ 2933.1 ☐ 4019
Date Sentence Pronounced:		Time Served in State Institution:	
10-18-13		DMH	CDC CRC

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.☐ county jail ☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE C. BEEBOUT for S. LEE	DATE 11-20-2017 nunc pro tunc to 10-18-2013
--	---

